

The Provincial Small Cause Courts Act, 1887

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Union of India - Act

The Provincial Small Cause Courts Act, 1887

UNION OF INDIA

India

The Provincial Small Cause Courts Act, 1887

Act 9 of 1887

Published on 4 November 1961

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The Provincial Small Cause Courts Act, 1887

(9 of 1887)

069.

Statement of Objects and Reasons.-The suits cognizable in Courts of Small Causes are subject to certain provisos, described in section 6, Act XI of 1865, as "claims for money due on bond or other contract, or for rent, or for personal property, or for the value of such property, or for damages, when the debt, damage or demand does not exceed in amount or value the sum of five hundred rupees whether on balance of account or otherwise" and section 586 of the Code of Civil Procedure provides that "no second appeal shall lie in any suit of the nature cognizable in Courts of Small Causes, when the amount or value of the subject-matter of the original suit does not exceed five hundred rupees". Since section 6 of the Act of 1865 was enacted, a vast quantity of case-law has grown up around it, and, as the rulings of the Courts have not been uniform, doubts constantly arise on the question whether a suit is or is not a suit of the nature

cognizable by a Court of Small Causes, and, consequently, whether or not, where the suit is of value not exceeding five hundred rupees and the original decree made in it was not final but was open to appeal, an appeal will also lie from the appellate decree in the suit. It appears to the Government of India that the conflicting constructions placed on section 6, of which some are due to the progress of legislation during the last twenty years (I.L.R. 3 All. 66), render a more accurate definition necessary of the suits of which Courts of Small Causes may take cognizance, and that legislation to this end should follow sections 18 and 19 of the Presidency Small Cause Courts Act, 1882, in declaring the jurisdiction of those Courts to extend to all suits of a civil nature, subject to specified exceptions. This Bill has accordingly been prepared, its primary object being to remove the doubts now felt as to the effect of section 6, Act XI of 1865; and, as several sections and parts of sections of that Act have, from time to time, been repealed and other sections are obsolete as regards both expression and utility, it has been considered desirable to repeal the Act and re-enact the substance of the extant portions of it.....

[24 th February , 1887]...

An Act to consolidate and amend the law relating to Courts of Small Causes established beyond the Presidency-towns. Whereas it is expedient to consolidate and amend the law relating to Courts of Small Causes established beyond the local limits for the time being of the ordinary original civil jurisdiction of the High Courts of Judicature at Fort William in Bengal and at Madras and Bombay;

It is hereby enacted as follows:-

The Act has been extended to the new Provinces and merged States by the Merged States (Laws) Act 59 of 1949 and to the States of Manipur, Tripura and Vindhya Pradesh by the Union Territories (Laws) Act 30 of 1950. Manipur and Tripura are full-fledged States now, see Act 81 of 1971. Vindhya Pradesh is a part of the State of Madhya Pradesh now, see Act

37 of 1956

.The Act has been extended to the Union territories of (1) Dadra and Nagar Haveli by Regulation 6 of 1963, (2) Laccadive, Minicoy and Amindivi Islands by Regulation 8 of 1965. These Islands are now known as Lakshadweep, see Act 34 of 1973, Section 3 and (3) Pondicherry by Act 26 of 1968. The Act as in force in the Malabar District has been repealed by the Kerala Small Cause Courts Act, 1957. The Act ceased to apply to the City of Ahmedabad with effect from 4th November, 1961. See Gujarat Act 19 of 1961, Section 19. For power to confer upon a Subordinate Judge or Munsif in Bengal, the province of Agra and Assam, the jurisdiction of a Court of Small Causes under this Act, see the Bengal, Agra and Assam Civil Courts Act, 1887 (

12 of 1887

), Section 25. Sections 15, 32, 37, 38, 39 and 40 of the Bengal, Agra and Assam Civil Courts Act, 1887 (

12 of 1887

) apply to Courts of Small Causes under this Act, see Act

12 of 1887

, Section 40. The powers of a Courts of Small Causes under this Act have been conferred upon the Courts of Sub-Divisional Officers of the Khondmals and Angul District by Section 13 of Regulations 4 and 5 of 1936, respectively.

Chapter I

Preliminary

1.

Title, extent and commencement.

(1)

This Act may be called The Provincial Small Cause Courts Act , 1887.

(2)

It extends to [the whole of India except [the territories which, immediately before the 1st November, 1956, were comprised in Part B States]

[Substituted by A.O.1950, for " all the Provinces of India" .]

]; and

(3)

It shall come into force on the first day of July, 1887.

2.

Repeal of enactments.

- [Repealed by the Amending Act, 1891 (12 of 1891.

), section 2 and Schedule I.]...

Construction. - [Repealed by the Amending Act, 1938 (1 of 1938), section 2 and Schedule.]...

3.

Savings.

- Nothing in this Act shall be construed to affect

(a)

any proceedings before or after decree in any suit instituted before the commencement of this Act; or

(b)

the jurisdiction of a Magistrate under any law for the time being in force with respect to debts or other claims of a civil nature, or of village-munsifs or village-panchayats, under the provisions of the Madras Code, or of village-munsifs under the Dekkhan Agriculturists Relief Act, 1879; or

(c)

any local law or any special law other than the [Code of Civil Procedure]

[Now see the Code of Civil Procedure, 1908 (5 of 1908).]

.

4.

Definition.

- In this Act, unless there is something repugnant in the subject or context, Court of Small Causes means a Court of Small Causes constituted under this Act, and includes any person exercising jurisdiction under this Act in any such Court.

Chapter II

Constitution Of Courts Of Small Causes

5.

Establishment of Courts of Small Causes.

(1)

The [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

[* * *]

[The words "with the previous sanction of the Governor-General in Council" repealed by Act 4 of 1914, Section 2 and Sch.]

may, by order in writing, establish a Court of Small Causes at any place within the territories under its administration beyond the local limits for the time being of the ordinary original civil jurisdiction of a High Court of Judicature established in a Presidency-town.

(2)

The local limits of the jurisdiction of the Court of Small Causes shall be such as the [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

may define, and the Court may be held at such place or places within those limits as the [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

may appoint.

6.

[Judge.

[Substituted by A.O.1937, Section 6.]

- When a Court of Small Causes has been established there shall be appointed, by order in writing, a Judge of the Court:

Provided that if the [State Government] so direct, the same person shall be the Judge of more than one such Court.]

7.

Appointment of times of sitting in certain circumstances.

(1)

A Judge who is the Judge of two or more such Courts may, with the sanction of the District Court, fix the times at which

he will sit in each of the Courts of which he is Judge.

(2)

Notice of the times shall be published in such manner as the High Court from time to time directs.

8.

Additional Judges.

- [(1) If the State Government so direct, there may be appointed, by order in writing, Additional Judges of a Court of Small Causes or of two or more such Courts.]

[Substituted by A.O.1937, for sub-Section (1).]

(2)

A [n Additional]

[Substituted by Act 11 of 1915, Section 2 and Sch.I, for "The Additional" .]

Judge shall discharge such of the functions of the Judge of the Court or Courts as the Judge may assign to him, and in the discharge of those functions shall exercise the same powers as the Judge.

(3)

The Judge may withdraw from [an Additional]

[Substituted by Act 11 of 1915, Section 2 and Sch.I, for "the additional" .]

Judge any business pending before him.

(4)

When the Judge is absent, the [Senior]

[Inserted by Act 11 of 1915, Section 2 and Sch.I.]

Additional Judge may discharge all or any of the functions of the Judge.

9.

Suspension and removal of Judges.

- [Repealed by A.O. 1937.]...

10.

Power to require two Judges to sit as a Bench.

- The [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

, after consultation with the High Court, may, by order in writing, direct that two-Judges of Courts of Small Causes or a Judge and an Additional Judge of a Court of Small Causes, shall sit together for the trial of such class or classes of suits or applications cognizable by a Court of Small Causes as may be described in the order.

11.

Decision in case heard by a Bench.

(1)

If two Judges, or a Judge and an Additional Judge, sitting together under the last foregoing section, differ as to a question of law or usage having the force of law, or in construing a document the construction of which may affect the merits, they shall draw up and refer, for the decision of the High Court, a statement of the facts of the case and of the point on which they differ in opinion, and the provisions of Chapter [XLVI]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), Sections 113 and 115 and the First Schedule, Order 46.]

of the Code of Civil Procedure shall apply to the reference.

(2)

If they differ on any matter other than a matter specified in sub-section (1), the opinion of the Judge who is senior in respect of date of appointment as Judge of a Court of Small Causes, or, if one of them is an Additional Judge, then, the opinion of the Judge sitting with him, shall prevail.

(3)

For the purposes of sub-section (2), a Judge permanently appointed shall be deemed to be senior to an officiating Judge.

12.

Registrar.

- [(1) There may be appointed to a Court of Small Causes an officer to be called the Registrar of the Court.]

[Substituted by A.O.1937, for sub-Section (1).]

(2)

Where a Registrar is appointed, he shall be the chief ministerial officer of the Court.

(3)

The [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

may, by order in writing, confer upon a Registrar, within the local limits of the jurisdiction of the Court, the jurisdiction of a Judge of a Court of Small Causes for the trial of suits of which the value does not exceed twenty rupees.

(4)

The Registrar shall try such suits cognizable by him as the Judge may, by general or special order, direct.

[* * *]

[Sub-Section (5) repealed by A.O.1937.]

13.

Other ministerial officers.

- [Repealed by A.O. 1937.]...

14.

Duties of ministerial officers.

(1)

The ministerial officers of a Court of Small Causes shall, in addition to any duties mentioned in this Act, or in any other enactment for the time being in force, as duties which are or may be imposed on any of them, discharge such duties of a ministerial nature as the Judge directs.

(2)

The High Court may make rules consistent with this Act, and with any other enactment for the time being in force, conferring and imposing on the ministerial officers of a Court of Small Causes such powers and duties as it thinks fit, and regulating the mode in which powers and duties so conferred and imposed are to be exercised and performed.

Chapter III

Jurisdiction Of Courts Of Small Causes

15.

Cognizance of suits by Courts of Small Causes.

(1)

A Court of Small Causes shall not take cognizance of the suits specified in the Second Schedule as suits excepted from the cognizance of a Court of Small Causes.

(2)

Subject to the exceptions specified in that Schedule and to the provisions of any enactment for the time being in force, all suits of a civil nature of which the value does not exceed five hundred rupees shall be cognizable by a Court of Small Causes.

Uttar Pradesh.- In section 15 of the Provincial Small Cause Courts Act, 1887.-

(a) In sub-section (2) for the words "five thousand rupees" the words "twenty five thousand rupees" shall be substituted;

(b) In the proviso to sub-section (2) for the words "twenty five thousand rupees" the words "one lakh rupees" shall be substituted.

(3)

Subject as aforesaid, the [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

may, by order in writing, direct that all suits of a civil nature of which the value does not exceed one thousand rupees shall be cognizable by a Court of Small Causes mentioned in the order.

16.

Exclusive jurisdiction of Courts of Small Causes.

- Save as expressly provided by this Act or by any other enactment for the time being in force, a suit cognizable by a Court of Small Causes shall not be tried by any other Court having jurisdiction within the local limits of the jurisdiction of the Court of Small Causes by which the suit is triable.

Chapter IV

Practice And Procedure

17.

Applicationv of the Code of Civil Procedure.

(1)

[The procedure prescribed in the Code of Civil Procedure, 1908 (5 of 1908), shall, save insofar as is otherwise provided by that Code or by this Act]

[Substituted by Act 1 of 1926, Section 2, for certain words.]

, be the procedure followed in a Court of Small Causes in all suits cognizable by it and in all proceedings arising out of such suits:

Provided that an applicant for an order to set aside a decree passed ex parte or for a review of judgment shall, at the time of presenting his application, either deposit in the Court the amount due from him under the decree or in pursuance of the judgment, or give [such security for the performance of the decree or compliance with the judgment as the Court may, on a previous application made by him in this behalf, have directed]

[Substituted by Act 9 of 1935, Section 2, for "security to the satisfaction of the Court for the performance of the decree or compliance with the judgement, as the Court may direct" .]

.

(2)

Where a person has become liable as surety under the proviso to sub-section (1), the security may be realised in manner provided by section [145]

[Substituted by Act 1 of 1926, Section 2, for the figures [253" .]

of the Code of Civil Procedure, [1908 (5 of 1908)]

[Inserted by Act 1 of 1926, Section 2.]

.

18.

Trial of suits by Registrar.

(1)

Suits cognizable by the Registrar under section 12, sub-sections (3) and (4), shall be tried by him and decrees passed therein shall be executed by him, in like manner in all respects as the Judge might try the suits, and execute the decrees, respectively.

(2)

The Judge may transfer to his own file, or to that of the Additional Judge, if an Additional Judge has been appointed, any suit or other proceeding pending on the file of the Registrar.

19.

Admission, return and rejection of complaints by Registrar.

(1)

When the Judge of a Court of Small Causes is absent, and an Additional Judge has not been appointed or, having been appointed, is also absent, the Registrar may admit a complaint, or return or reject a complaint for any reason for which the Judge might return or reject it.

(2)

The Judge may, of his own motion or on the application of a party, return or reject a complaint which has been admitted by the Registrar, or admit a complaint which has been returned or rejected by him:

Provided that where a party applies for the return or rejection or the admission of a complaint under this sub-section, and his application is not made at the first sitting of the Judge after the day on which the Registrar admitted, or returned or rejected, the complaint, the Judge shall dismiss the application unless the applicant satisfies him that there was sufficient cause for not making the application at that sitting.

20.

Passing of decrees by Registrar on confession.

(1)

If, before the date appointed for the hearing of a suit, the defendant or his agent duly authorised in that behalf appears before the Registrar and admits the plaintiff's claim, the Registrar may, if the Judge is absent, and an Additional Judge has not been appointed or, having been appointed, is also absent, pass against the defendant, upon the admission, a decree which shall have the same effect as a decree passed by the Judge.

(2)

Where a decree has been passed by the Registrar under sub-section (1), the Judge may grant an application for review of judgment, and re-hear the suit, on the same conditions, on the same grounds and in the same manner as if the decree had been passed by himself.

21.

Execution of decrees by Registrar.

(1)

If the Judge is absent, and an Additional Judge has not been appointed or, having been appointed, is also absent, the Registrar may, subject to any instructions which he may have received from the Judge or, with respect to decrees or orders made by an Additional Judge, from the Additional Judge, make any orders in respect of applications for the execution of decrees and orders made by the Court of which he is Registrar, or sent to that Court for execution, which the Judge might make under this Act.

(2)

The Judge, in the case of any decree or order with respect to the execution of which the Registrar has made an order under sub-section (1), or the Additional Judge, in the case of any such decree or order which has been made by himself and with respect to which proceedings have not been taken by the Judge under this sub-section, may, of his own motion, or on application made by a party within fifteen days from the date of the order of the Registrar or of the execution of any process issued in pursuance of that order, reverse or modify the order.

(3)

The period of fifteen days mentioned in sub-section (2) shall be computed in accordance with the provisions of the [Indian Limitation Act, 1877 (15 of 1877)]

[Now see the Limitation Act, 1963 (

36 of 1963

).]

, as though the application of the party were an application for review of judgment.

22.

Adjournment of cases by chief ministerial officer.

- When the Judge of a Court of Small Causes is absent and an Additional Judge has not been appointed or, having been appointed, is also absent, the Registrar or other chief ministerial officer of the Court may exercise from time to time the power which the Court possesses of adjourning the hearing of any suit or other proceeding, and fix a day for the further hearing thereof.

23.

Return of complaints in suits involving questions of title.

(1)

Notwithstanding anything in the foregoing portion of this Act, when the right of a plaintiff and the relief claimed by him in a Court of Small Causes depend upon the proof or disproof of a title to immovable property or other title which such a Court cannot finally determine, the Court may at any stage of the proceedings return the complaint to be presented to a Court having jurisdiction to determine the title.

(2)

When a Court returns a complaint under sub-section (1), it shall comply with the provisions of the second paragraph of section 57 of the [Code of Civil Procedure (14 of 1882)]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), Sch.I, Order 7, Rule 10.]

and make such order with respect to costs as it deems just, and the Court shall, for the purposes of the [Indian Limitation Act, 1877 (15 of 1877)]

[Now see the Limitation Act, 1963 (

36 of 1963

).]

, be deemed to have been unable to entertain the suit by reason of a cause of a nature like to that of defect of jurisdiction.

24.

Appeal from certain orders of Courts of Small Causes.

- Where an order specified in [clause (ff) or clause (h) of sub-section (1) of section 104 of the Code of Civil Procedure, 1908 (5 of 1908)]

[Substituted by Act 9 of 1922, Section 5, for "section 588, clause (29) of the Code of Civil Procedure" .]

is made by a Court of Small Causes, an appeal therefrom shall lie to the District Court [on any ground on which an appeal from such order would lie under that section.]

[Inserted by Act 9 of 1922, Section 5.]

25.

Revision of decrees and orders of Courts of Small Causes.

- The High Court for the purpose of satisfying itself that a decree or order made in any case decided by a Court of Small Causes was according to law, may call for the case and pass such order with respect thereto as it thinks fit.

26.

Amendment of the Second Schedule to the Code of Civil Procedure.

- [Repealed by the Presidency Small Cause Courts Law Amendment Act, 1888 (10 of 1888), section 4.]...

27.

Finality of decrees and orders.

- Save as provided by this Act, a decree or order made under the foregoing provisions of this Act by a Court of Small Causes shall be final.

Chapter V

Supplemental Provisions

28.

Subordination of Courts of Small Causes.

(1)

A Court of Small Causes shall be subject to the administrative control of the District Court and to the superintendence of the High Court, and shall

(a)

keep such registers, books and accounts as the High Court from time to time prescribes, and

(b)

comply with such requisitions as may be made by the District Court, the High Court or the State Government for records, returns and statements in such form and manner as the authority making the requisition directs.

(2)

The relation of the District Court to a Court of Small Causes, with respect to administrative control, shall be the same as that of the District Court to a Civil Court of the lowest grade competent to try an original suit of the value of five thousand rupees in that portion of the territories administered by the State Government in which the Court of Small Causes is established.

29.

Seal.

- A Court of Small Causes shall use a seal of such form and dimensions as are prescribed by the State Government.

30.

Abolition of Courts of Small Causes.

- The [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

may, by order in writing, abolish a Court of Small Causes.

31.

Saving of power to appoint Judge of Court of Small Causes to other office.

(1)

Nothing in this Act shall be construed to prevent [the appointment of]

[Substituted by A.O.1937, for "the Local Government from appointing" .]

a person who is a Judge or Additional Judge of a Court of Small Causes to be also a Judge of any other Civil Court or to be a Magistrate of any class or to hold any other public office.

(2)

When a Judge or Additional Judge is so appointed, the ministerial officers of this Court shall, subject to any rules which the [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

may make in this behalf, be deemed to be ministerial officers appointed to aid him in the discharge of the duties of the other office.

32.

Application of Act to Courts invested with jurisdiction of Court of Small Causes.

(1)

So much of Chapters III and IV as relates to

(a)

the nature of the suits cognizable by Courts of Small Causes,

(b)

the exclusion of the jurisdiction of other Courts in those suits,

(c)

the practice and procedure of Courts of Small Causes,

(d)

appeal from certain orders of those Courts and revision of cases decided by them, and

(e)

the finality of their decrees and orders subject to such appeal and revision as are provided by this Act,

applies to Courts invested by or under any enactment for the time being in force with the jurisdiction of a Court of Small Causes so far as regards the exercise of that jurisdiction by those Courts.

(2)

Nothing in sub-section (1) with respect to Courts invested with the jurisdiction of a Court of Small Causes applies to suits instituted or proceedings commenced in those Courts before the date on which they were invested with that jurisdiction.

33.

Application of Act and Code to Court so invested as to two Courts.

- A Court invested with the jurisdiction of a Court of Small Causes with respect to the exercise of that jurisdiction, and the same Court with respect to the exercise of its jurisdiction in suits of a civil nature which are not cognizable by a Court of Small Causes, shall, for the purposes of this Act and the [Code of Civil Procedure (14 of 1882)]

[Now see the Code of Civil Procedure, 1908 (5 of 1908).]

, be deemed to be different Courts.

34.

Modification of Code as so applied.

- Notwithstanding anything in the last two foregoing sections,

(a)

when, in exercise of the jurisdiction of a Court of Small Causes, a Court invested with that jurisdiction sends a decree for execution to itself as a Court having jurisdiction in suits of a civil nature which are not cognizable by a Court of Small Causes, or

(b)

when a Court, in the exercise of its jurisdiction in suits of a civil nature which are not cognizable by a Court of Small Causes, sends a decree for execution to itself as a Court invested with the jurisdiction of a Court of Small Causes, the documents mentioned in [section 224 of the Code of Civil Procedure (14 of 1882)]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), Order 21, Rule 6.]

shall not be sent with the decree unless in any case the Court, by order in writing, requires them to be sent.

35.

Continuance of proceedings of abolished Courts.

(1)

Where a Court of Small Causes, or a Court invested with the jurisdiction of a Court of Small Causes, has from any cause ceased to have jurisdiction with respect to any case, any proceeding in relation to the case, whether before or after decree, which, if the Court had not ceased to have jurisdiction, might have been had therein, may be had in the Court which, if the suit out of which the proceeding has arisen were about to be instituted, would have jurisdiction to try

the suit.

(2)

Nothing in this section applies to cases for which special provision is made in the [Code of Civil Procedure, 1882 (14 of 1882)]

[Now see the Code of Civil Procedure, 1908 (5 of 1908).]

as extended to Courts of Small Causes or in any other enactment for the time being in force.

36.

Amendment of Indian Limitation Act.

- [Repealed by the Indian Limitation Act, 1908

(9 of 1908).]...

37.

Publication of certain orders.

- All orders required by this Act to be made in writing by the [State Government]

[Substituted by A.O.1950, for "Provincial Government" .]

shall be published in the Official Gazette.

The First Schedule

Enactments Repealed. [Repealed by the Amending Act, 1891 (12 of 1891), section 2 and Schedule I.]...

The Second Schedule

Suits Excepted from the Cognizance of a Court of Small Causes

(See section 15)

(1)

[A suit concerning any act done or purporting to be done by or by order of the Central Government, the Crown Representative or the State Government;]

[Substituted by A.O.1937, for paragraph (1).]

(2)

a suit concerning an act purporting to be done by any person in pursuance of a judgment or order of a Court or of a judicial officer acting in the execution of his office;

(3)

a suit concerning an act or order purporting to be done or made by any other officer of the Government in his official capacity, or by a Court of Wards, or by an officer of a Court of Wards in the execution of his office;

(4)

a suit for the possession of immovable property or for the recovery of an interest in such property;

(5)

a suit for the partition of immovable property;

(6)

a suit by a mortgagee of immovable property for the foreclosure of the mortgage or for the sale of the property, or by a mortgagor of immovable property for the redemption of the mortgage;

(7)

a suit for the assessment, enhancement, abatement or apportionment of the rent of immovable property;

(8)

a suit for the recovery of rent, other than house-rent, unless the Judge of the Court of Small Causes has been expressly invested by the State Government with authority to exercise jurisdiction with respect thereto;

(9)

a suit concerning the liability of land to be assessed to land revenue;

(10)

a suit to restrain waste;

(11)

a suit for the determination or enforcement of any other right to or interest in immovable property;

(12)

a suit for possession of an hereditary office or of an interest in such an office, including a suit to establish an exclusive or periodically recurring right to discharge the functions of an office;

(13)

a suit to enforce payment of the allowance or fees respectively called malikana and hakk, or of cesses or other dues when the cesses or dues are payable to a person by reason of his interest in immovable property or in an hereditary office or in a shrine or other religious institution;

(14)

a suit to recover from a person to whom compensation has been paid under the [Land Acquisition Act, 1870 (10 of 1870)]

[Now see the Land Acquisition Act, 1894 (1 of 1894

).]

, the whole or any part of the compensation;

(15)

a suit for the specific performance or rescission of a contract;

(16)

a suit for the rectification or cancellation of an instrument;

(17)

a suit to obtain an injunction;

(18)

a suit relating to a trust, including a suit to make good out of the general estate of a deceased trustee the loss occasioned by a breach of trust, and a suit by a co-trustee to enforce against the estate of a deceased trustee a claim for contribution;

(19)

a suit for a declaratory decree, not being a suit instituted under [section 283]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), First Schedule, Order 21, Rule 63 and 100, respectively.] or section 332 of the Code of Civil Procedure, 1882 (14 of 1882);

(20)

a suit instituted under [section 283]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), First Schedule, Order 21, Rule 63 and 100, respectively.] or section 332 of the Code of Civil Procedure, 1882 (14 of 1882);

(21)

a suit to set aside an attachment by a Court or a revenue authority, or a sale, mortgage, lease or other transfer by a Court or a revenue-authority or by a guardian;

(22)

a suit for property which the plaintiff has conveyed while insane;

(23)

a suit to alter or set aside a decision, decree or order of a Court or of a person acting in a judicial capacity;

(24)

a suit to contest an award;

(25)

a suit upon a foreign judgment as defined in the [Code of Civil Procedure, 1882 (14 of 1882)]

[Now see the Code of Civil Procedure, 1908 (5 of 1908).]

or upon a judgment obtained in [India]

[Substituted by the Adaptation of Laws (No.2) Order, 1956, for "a Part A State or a Part C State" .]

;

(26)

a suit to compel a refund of assets improperly distributed under [section 295]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), Section 73.]

of the Code of Civil Procedure, 1882 (14 of 1882);

(27)

a suit under the [Indian Succession Act, 1865 (10 of 1865)]

[Now see the Indian Succession Act, 1925 (30 of 1925), Sections 360 and 361.]

, section 320 or section 321, or under the Probate and Administration Act, 1881 (5 of 1881), section 139 or section 140, to compel a refund by a person to whom an executor or administrator has paid a legacy or distributed assets;

(28)

a suit for a legacy or for the whole or a share of a residue bequeathed by a testator, or for the whole or a share of the property of an intestate;

(29)

a suit

(a)

for a dissolution of partnership or for the winding up of the business of a partnership after its dissolution;

(b)

for an account of partnership-transaction; or

(c)

for a balance of partnership-account, unless the balance has been struck by the parties or their agents.

(30)

a suit for an account of property and for its due administration under decree;

(31)

any other suit for an account, including a suit by a mortgagor, after the mortgage has been satisfied, to recover surplus collections received by the mortgagee, and a suit for the profits on immovable property belonging to the plaintiff which have been wrongfully received by the defendant;

(32)

a suit for a general average loss or for salvage;

(33)

a suit for compensation in respect of collision between ships;

(34)

a suit on a policy of insurance or for the recovery of any premium paid under any such policy;

(35)

a suit for compensation

(a)

for loss occasioned by the death of a person caused by actionable wrong;

(b)

for wrongful arrest, restraint or confinement;

(c)

for malicious prosecution;

(d)

for libel;

(e)

for slander;

(f)

for adultery or seduction;

(g)

for breach of contract of betrothal or promise of marriage;

(h)

for inducing a person to break a contract made with the plaintiff;

(i)

for obstruction of an easement or diversion of a water-course;

(ii)

[for an act which is, or, save for the provisions of Chapter IV of the Indian Penal Code (45 of 1860), would be, an offence punishable under Chapter XVII of the said Code;]

[Inserted by Act 6 of 1914, Section 2.]

(j)

[for illegal, improper or excessive distress, attachment or search, or for trespass committed in, or damage caused by,

the illegal or improper execution of any distress, search or legal process;]

[Substituted by Act 6 of 1914, Section 2, for Clause (j).]

(k)

for improper arrest under [Chapter XXXIV]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), Sch.I, Order 38 and 39, respectively, and Section 95.]

of the Code of Civil Procedure, 1882 (14 of 1882) or in respect of the issue of an injunction wrongfully obtained under

[Chapter XXXIV]

[Now see the Code of Civil Procedure, 1908 (5 of 1908), Sch.I, Order 38 and 39, respectively, and Section 95.]

of that Code; or

(l)

for injury to the person in any case not specified in the foregoing sub-clauses of this clause;

(36)

a suit by a Muhammadan for exigible (muajjal) or deferred (muwajjal) dower;

(37)

a suit for restitution of conjugal rights, [* * *]

[The words "for the recovery of a wife" repealed by the Repealing and Amending Act 10 of 1914, Section 2 and Sch.II.]

for the custody of a minor, or for a divorce;

(38)

a suit relating to maintenance;

(39)

a suit for arrears of land revenue, village expenses or other sums payable to the representative of a village community or to his heir or other successor-in-title;

(40)

a suit for profits payable by the representative of a village community or by his heir or other successor-in-title after payment of land revenue, village expenses and other sums;

(41)

a suit for contribution by a sharer in joint property in respect of a payment made by him of money due from a co-sharer, or by a manager of joint property, or a member of an undivided family in respect of a payment made by him on account of the property or family;

(42)

a suit by one of several joint mortgagors of immovable property for contribution in respect of money paid by him for the redemption of the mortgaged property;

(43)

a suit against the Government to recover money paid under protest in satisfaction of a claim made by a revenue authority on account of an arrear of land revenue or of a demand recoverable as an arrear of land revenue;

[(43-A) a suit to recover property obtained by an act which is, or, save for the provisions of Chapter IV of the Indian Penal Code (45 of 1860), would be, an offence punishable under Chapter XVII of the said Code;]

[Inserted by Act 6 of 1914, Section 3.]

(44)

a suit the cognizance whereof by a Court of Small Causes is barred by any enactment for the time being in force.

THE FIRST SCHEDULE

[ENACTMENTS REPEALED] Repealed by the Amending Act, 1891 (12 of 1891), Section 2 and Sch.I.

{This Schedule has been amended in its application to the Bombay Presidency by Section 2 of the Provincial Small Cause Courts (Bombay Amendment) Act, 1930 (Bom. 6 of 1930); and by Section 2 of the Provincial Small Cause Courts (Bombay Amendment) Act, 1932 (Bom. 9 of 1932).}

THE SECOND SCHEDULE

SUITS EXCEPTED FROM THE COGNIZANCE OF A COURT OF SMALL CAUSES

(See section 15)

(1)

[A suit concerning any act done or purporting to be done by or by order of the Central Government, the Crown Representative or the State Government;]

[Substituted by A.O. 1937, for paragraph (1)]

(2)

a suit concerning an act purporting to be done by any person in pursuance of a judgment or order of a Court or of a judicial officer acting in the execution of his office;

(3)

a suit concerning an act or order purporting to be done or made by any other officer of the Government in his official capacity, or by a Court of Wards, or by an officer of a Court of Wards in the execution of his office;

(4)

a suit for the possession of immovable property or for the recovery of an interest in such property;

State Amendments- [Gujarat]. - Same as that of maharashtra. - Act

11 of 1960

, Section 87 and Gujarat A.L.O., 1960. The Act, however, ceases to apply to the City of Ahmedabad. See Gujarat Act 19 of 1961, Section 19 (w.e.f. 4-11-1961)

[Maharashtra].-In its application to the State of Maharashtra, Cl. (4) shall be deleted.- Maharashtra Act 24 of 1984, Section 5 (w.e.f. 1-1-1985). Prior to deletion, after the words "such property", following was inserted:

"but not including a suit for ejectment where

(a) the property has been let under a lease by a written instrument or orally, and

(b) the Court of Small Causes would be competent to take cognizance of a suit for the rent of the property, and

(c) the only substantial issue arising for decision is as to whether the lease has determined by efflux of the time limited thereby or has been determined by a notice in accordance with clause (h) of section 111 of the Transfer of Property Act, 1882."-Bombay Act 6 of 1930, Section 3(1) (w.e.f. 9-5-1930); Act

9 of 1932

, Section 2 (w.e.f. 10-11-1932) read with Act 87 of 1958, Section 2 (w.e.f. 15-10-1958);Act

11 of 1960

, Section 3.

[Uttar Pradesh].-In its application to the State of Uttar Pradesh, for Cl. (4), substitute the following clause, namely:

"(4) a suit for the possession of immovable property or for the recovery of an interest in such property, but not including a suit by a lessor for the eviction of a lessee from a building after the determination of his lease, and for the recovery from him of compensation for the use and occupation of that building after such determination of lease.

Explanation.-For the purposes of this article, the expression "building" means a residential or non-residential roofed structure, and includes any land (including any garden), garages, out-houses, appurtenant to such building, and also includes any fittings and fixtures affixed to the building for the more beneficial enjoyment thereof."-Uttar Pradesh Act 37 of 1972, Section 4 (w.e.f. 20-9-1972).

(5) a suit for the partition of immovable property;

(6) a suit by a mortgagee of immovable property for the foreclosure of the mortgage or for the sale of the property, or by a mortgagor of immovable property for the redemption of the mortgage;

(7) a suit for the assessment, enhancement, abatement or apportionment of the rent of immovable property;

(8) a suit for the recovery of rent, other than house-rent, unless the Judge of the Court of Small Causes has been expressly invested by the State Government with authority to exercise jurisdiction with respect thereto;

State Amendments-[Maharashtra].-In its application to the State of Maharashtra, Cl. (8) shall be deleted.-Maharashtra Act 24 of 1984, Section 5 (w.e.f. 1-1-1985).

[Uttar Pradesh].-In its application to the State of Uttar Pradesh, in Sch. 11, Cl. (8) shall be omitted.-Uttar Pradesh Act 24 of 1954, Section 2 and Sch. (w.e.f. 30-11-1954).

(9) a suit concerning the liability of land to be assessed to land revenue;

(10) a suit to restrain waste;

(11) a suit for the determination or enforcement of any other right to or interest in immovable property;

(12) a suit for possession of an hereditary office or of an interest in such an office, including a suit to establish an exclusive or periodically recurring right to discharge the functions of an office;

(13) a suit to enforce payment of the allowance or fees respectively called nalikana and hakk, or of cesses or other dues when the cesses or dues are payable to a person by reason of his interest in immovable property or in an hereditary office or in a shrine or other religious institution;

State Amendment-[Maharashtra].-In its application to the State of Maharashtra, in Cl. (13), after the words "other religious institution", insert "but not including any such suit where the right is based on a contract reduced to writing".-Maharashtra Act 24 of 1984, Section 5 (w.e.f. 1-1-1985).

(14) a suit to recover from a person to whom compensation has been paid under the Land Acquisition Act, 1870 (10 of 1870), the whole or any part of the compensation;

(15) a suit for the specific performance or rescission of a contract;

(16) a suit for the rectification or cancellation of an instrument;

(17) a suit to obtain an injunction;

(18) a suit relating to a trust, including a suit to make good out of the general estate of a deceased trustee the loss occasioned by a breach of trust, and a suit by a co-trustee to enforce against the estate of a deceased trustee a claim for contribution;

State Amendments-[Gujarat].-Same as that of Maharashtra.-Act

11 of 1960

, Section 87 and Gujarat A.L.O, 1960. The Act, however, ceases to apply to the City of Ahmedabad. See Gujarat Act 19 of 1961, Section 19 (w.e.f. 4-11-1961).

[Maharashtra].-In its application to the State of Maharashtra, in Cl. (18) for the words "relating to a trust", substitute "to enforce a trust"-Bombay Act 6 of 1930, Section 3(2) (w.e.f. 9-5-1930) read with Act 87 of 1958, Section 2 (w.e.f. 15-10-1959); Act

11 of 1960

, Section 3.

(19) a suit for a declaratory decree, not being a suit instituted under 2 section 283 or section 332 of the Code of Civil Procedure, 1882 (14 of 1882);

(20) a suit instituted under 2section 283 or section 332 of the Code of Civil Procedure, 1882 (14 of 1882);

State Amendments-[Gujarat].-Same as that of Maharashtra.-Act

11 of 1960

, Section 87 and Gujarat A.L.O, 1960. The Act, however, ceases to apply to the City of Ahmedabad. See Gujarat Act 19 of 1961, Section 19 (w.e.f. 4-11-1961).

[Maharashtra].-In its application to the State of Maharashtra, in Cl. (20), after the words "Code of Civil Procedure", add "in respect of any immovable property".-Bombay Act 6 of 1930, Section 3(3) (w.e.f. 9-5-1930) read with Act 87 of 1958, Section 2 (w.e.f. 15-10-1958); Act

11 of 1960

, Section 3.

(21) a suit to set aside an attachment by a Court or a revenue authority, or a sale, mortgage, lease or other transfer by a Court or a revenue-authority or by a guardian;

State Amendments-[Gujarat].-Same as that of Maharashtra.-Act

11 of 1960

, Section 87 and Gujarat A.L.O, 1960. The Act, however, ceases to apply to the City of Ahmedabad. See Gujarat Act 19 of 1961, Section 19 (w.e.f. 4-11-1961).

[Maharashtra].-In its application to the State of Maharashtra, in Cl. (21),-

(a) after the word "attachment", add "of any immovable property";

(b) after the word "transfer", add "of any such property".-Bombay Act 6 of 1930,

Section 3(4) (w.e.f. 9-5-1930) read with Act 87 of 1958, Section 2 (w.e.f. 15-10-1958); Act

11 of 1960

, Section 3.

(22) a suit for property which the plaintiff has conveyed while insane;

(23) a suit to alter or set aside a decision, decree or order of a Court or of a person acting in a judicial capacity;

(24) a suit to contest an award;

(25) a suit upon a foreign judgment as defined in the Code of Civil Procedure, 1882 (14 of 1882)' or upon a judgment obtained in '[India];

(26) a suit to compel a refund of assets improperly distributed under 'section 295 of the Code of Civil Procedure, 1882 (14 of 1882);

State Amendments-[Maharashtra].-In its application to the State of Maharashtra, Cls. (25) and (26) shall be omitted.-Maharashtra Act 24 of 1984, Section 5 (w.e.f. 1-1-1985).

[Uttar Pradesh].-In its application to the State of Uttar Pradesh, Cl. (26) shall be omitted.-Uttar Pradesh Act 24 of 1954, Section 2 and Sch. (w.e.f. 30-11-1954).

(27) a suit under the 'Indian Succession Act, 1865 (10 of 1865), section 320 or section 321, or under the Probate and Administration Act, 1881 (5 of 1881), section 139 or section 140, to compel a refund by a person to whom an executor or administrator has paid a legacy or distributed assets;

(28) a suit for a legacy or for the whole or a share of a residue bequeathed by a testator, or for the whole or a share of the property of an intestate;

(29) a suit--

(a) for a dissolution of partnership or for the winding up of the business of a partnership after its dissolution;

(b) for an account of partnership-transaction; or

(c) for a balance of partnership-account, unless the balance has been struck by the parties or their agents.

(30) a suit for an account of property and for its due administration under decree;

(31) any other suit for an account, including a suit by a mortgagor, after the mortgage has been satisfied, to recover surplus collections received by the mortgagee, and a suit for the profits on immovable property belonging to the plaintiff which have been wrongfully received by the defendant;

State Amendments-[Gujarat].-Same as that of Maharashtra.-Act

11 of 1960

, Section 87 and Gujarat A.L.O, 1960. The Act, however, ceases to apply to the City of Ahmedabad. See Gujarat Act 19 of 1961, Section 19 (w.e.f. 4-11-1961).

[Maharashtra].-In its application to the State of Maharashtra, in Cl. (31) of Sch. II, for the words "and a suit for the profits on immovable property belonging to the plaintiff which have been wrongfully received by the defendant", substitute "but not including a suit for mesne profits".-Bombay Act 6 of 1930, Section 3(5) (w.e.f. 9-5-1930) read with Act 87 of 1958, Section 2 (w.e.f. 15-10-1958); Act

11 of 1960

, Section 3.

(32) a suit for a general average loss or for salvage;

(33) a suit for compensation in respect of collision between ships;

(34) a suit on a policy of insurance or for the recovery of any premium paid under any such policy;

State Amendment-[Uttar Pradesh].-In its application to the State of Uttar Pradesh, in Sch. II, Cl. 34 shall be omitted.-Uttar Pradesh Act 24 of 1954, Section 2 and Sch. (w.e.f. 30-11-1954).

(35) a suit for compensation-

(a) for loss occasioned by the death of a person caused by actionable wrong;

(b) for wrongful arrest, restraint or confinement;

(c) for malicious prosecution;

(d) for libel;

(e) for slander;

(f) for adultery or seduction;

(g) for breach of contract of betrothal or promise of marriage;

(h) for inducing a person to break a contract made with the plaintiff;

(i) for obstruction of an easement or diversion of a water-course;

(ii) [for an act which is, or, save for the provisions of Chapter IV of the Indian Penal Code (45 of 1860), would be, an offence punishable under Chapter XVII of the said Code;]

[Inserted by Act 6 of 1914, Section 2]

(j) [for illegal, improper or excessive distress, attachment or search, or for trespass committed in, or damage caused by, the illegal or improper execution of any distress, search or legal process;]

[Substituted by Act 6 of 1914, Section 2, for Cl. (j).]

(k) for improper arrest under Chapter XXXIV of the Code of Civil Procedure, 1882 (14 of 1882) or in respect of the issue of an injunction wrongfully obtained under Chapter XXXV of that Code; or

(l) for injury to the person in any case not specified in the foregoing sub-clauses of this clause;

State Amendment-[Uttar Pradesh].-In its application to the State of Uttar Pradesh, Sub-CI. (ii) of CI. (35) shall be omitted.-Uttar Pradesh Act 24 of 1954, Section 2 and Sch. (w.e.f. 30-11-1954).

(36) a suit by a Muhammadan for exigible (mu'njjal) or deferred (mu'wajjal) dower;

(37) a suit for restitution of conjugal rights,[* * *]

[The words " for the recovery of a wife" repealed by the Repealing and Amending Act 10 of 1914, Section 2 and Sch. II] for the custody of a minor, or for a divorce;

(38) a suit relating to maintenance;

State Amendments-[Maharashtra].-In its application to the State of Maharashtra, in CI. (38), after the words "relating to maintenance" add "but not including any suit where the right is based on a contract reduced in writing".-Maharashtra Act 24 of 1984, Section 5 (w.e.f. 1-1-1985). [Uttar Pradesh].-In its application to the State of Uttar Pradesh, for CI. (38), substitute the following clause, namely :-

"(38) a suit relating to maintenance but not being a suit for recovery of arrears of maintenance based upon a decree or written arrangement."-Uttar Pradesh Act 24 of 1954, Section 2 and Sch. (w.e.f. 30-11-1954).

(39) a suit for arrears of land revenue, village expenses or other sums payable to the representative of a village community or to his heir or other successor-in-title;

(40) a suit for profits payable by the representative of a village community or by his heir or other successor-in-title after payment of land revenue, village expenses and other sums;

(41) a suit for contribution by a sharer in joint property in respect of a payment made by him of money due from a co-sharer, or by a manager of joint property, or a member of an undivided family in respect of a payment made by him on account of the property or family;

(42) a suit by one of several joint mortgagors of immovable property for contribution in respect of money paid by him for the redemption of the mortgaged property;

(43) a suit against the Government to recover money paid under protest in satisfaction of a claim made by a revenue authority on account of an arrear of land revenue or of a demand recoverable as an arrear of land revenue;

[(43-A) a suit to recover property obtained by an act which is, or, save for the provisions of Chapter IV of the Indian Penal Code (45 of 1860), would be, an offence punishable under Chapter XVII of the said Code;]

[Inserted by Act 6 of 1914, Section 3]

State Amendment-[Uttar Pradesh].-In its application to the State of Uttar Pradesh, CI. (43-A) shall be omitted.-Uttar Pradesh Act 24 of 1954, Section 2 and Sch. (w.e.f. 30-11-1954).

(44) a suit the cognizance whereof by a Court of Small Causes is barred by any enactment for the time being in force.

State Amendments-[Gujarat].-Same as that of Maharashtra.-Act

11 of 1960

, Section 87 and Gujarat A.L.O, 1960. The Act, however, ceases to apply to the City of Ahmedabad. See Gujarat Act 19 of 1961, Section 19 (w.e.f. 4-11-1961).

[Maharashtra].-In its application to the State of Maharashtra, after the Second Schedule, insert the following Schedule, namely,

THE THIRD SCHEDULE

FORM A

(See section 27-B)

In the Court of Small Causes of

A.B

.....
.....(Plaintiff)

versus

C. D
.....
.....(Defendant).

A.B., of in the town of maketh oath (or affirms) and saith that C.D of is justly indebted to in the sum of Rs for arrears of rent of the house and premises No..... situated at in the town of/village due for months, to wit, from to, at the rate of Rs..... per mensem.

Sworn (or affirmed) before me day of20.....

Judge of the Court of Small Causes of

FORM B

(See section 27-C)

In the Court of Small Causes of

Form of Warrant

I hereby direct you to distrain the movable property of C.D., on the house and premises situated at No in the town/village of for the sum of Rupees, and the costs of the distress, according to the provisions of Chapter IV-A of the Provincial Small Cause Courts Act, 1887.

Dated the day of 20.....

To

E.F., Bailiff.

(Signed and Sealed)

FORM C

(See section 27-I)

In the Court of Small Causes of

Form of Inventory and Notice

(State particulars of property seized)

Take notice that I have this day seized the movable property contained in the above inventory for the sum of Rupees, being the amount of months' rent due to A.B., at last, and that unless you pay the amount thereof, together with the costs of this distress, within fifteen days from the date hereof, or obtain an order from the Court of Small Causes to the contrary, the same will be appraised and sold pursuant to the provisions of Chapter IV-A of the Provincial Small Cause Courts Act, 1887.

Dated the day of20.....

To

C. D.

(Signed)

E.F.,

Bailiff.

FORM D

(See section 27-N)

In the Court of Small Causes of

Take notice that I have appraised the movable property seized on the day of under the provisions of Chapter IV-A of the Provincial Small Cause Courts Act, 1887, of which seizure and property a notice and inventory were duly served upon you (or upon on your behalf, as the case may be) under date the and that the said property will be sold on the (two clear days at least after the date of the notice) at pursuant to the provisions of the said Act.

Dated the day of20.....

(Signed)

E.F.,

Nazir and Appraiser.

To

C.D.

FORM E

(See section 27-P)

In the Court of Small Causes of

Scale of fees to be levied in distrains for house rent

Sums sued for

Affidavit and warrant to distrain

Order to sell

Commission

Total

Rs.

Rs.

Rs.

n.P.

Rs.

n.P.

Rs.

n.P.

Rs.

n.P.

1 and under 5

0-50

0-50

0-50

1-25

5 ?

10

0-50

0-50

1-00

2-00

10 ?

15

0-50

0-50

1-50

2-50

15 ?

20

0-50

1-00

2-00

3-50

20 ?

25

0-75

1-00

2-50

4-25

25 ?

30

1-00

1-00

3-00

5-00

30 ?

35

1-00

1-00

3-50

5-50
35 ?
40
1-00
1-50
4-00
6-50
40 ?
45
1-25
2-00
4-50
7-75
45 ?
50
1-50
2-00
5-00
8-50
50 ?
60
2-00
2-00
6-00
10-00
60 ?
80
2-50
2-50
6-50
11-50
80 ?
100
3-00
3-00
7-00
13-00
Upwards of 100
3-00
3-00
7 per centum
?.

The above scale includes all expenses, except in suits where the tenant disputes the landlord's claim, and witnesses have to be summoned, in which case each summons must be paid for at twenty-five naye paise each for sums under Rupees 40 and seventy-five naye paise each for sums above that amount, and also where peons are kept in charge of property distrained such fee not exceeding seventy-five naye paise per day as may be fixed by the Registrar of Small Cause Court must be paid per man."-Bombay Act 87 of 1958, Section 8 (w.e.f. 15-10-1958); Act

11 of 1960

, Section 3.

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Translation